

[CERTAIN INFORMATION, IDENTIFIED BY, AND REPLACED WITH, A MARK OF “[***]” HAS BEEN EXCLUDED FROM THIS DOCUMENT BECAUSE IT IS BOTH (I) NOT MATERIAL AND (II) IS THE TYPE THAT THE REGISTRANT TREATS AS PRIVATE OR CONFIDENTIAL.]

**AMENDMENT NO. 5 TO LOAN AGREEMENT AND
AMENDMENT NO. 1 TO FORBEARANCE AGREEMENT**

This **AMENDMENT NO. 5 TO LOAN AGREEMENT AND AMENDMENT NO. 1 TO FORBEARANCE AGREEMENT**, dated as of June 23, 2026 (this “Fifth Amendment”), is made by and among TerrAscend Corp., an Ontario corporation (“Parent”), as Guarantor, each Subsidiary of Parent identified on the signature pages hereto as “BORROWERS” (collectively, the “Borrowers”, and together with Parent, the “Loan Parties”), each of the Lenders party hereto, and FG Agency Lending LLC, as administrative agent for the Lenders (in such capacity, the “Agent”).

RECITALS:

WHEREAS, reference is hereby made to (a) the Loan Agreement, dated as of August 1, 2024 (as amended, restated, supplemented or otherwise modified prior to the date hereof, the “Existing Loan Agreement” and, as amended by this Fifth Amendment, the “Amended Loan Agreement”; capitalized terms used but not defined herein have the meaning provided in the Amended Loan Agreement), by and among the Guarantor, the Loan Parties, the Lenders from time to time party thereto, and the Agent, and (b) the Forbearance Agreement, dated as of May 1, 2026 (as amended, restated, supplemented or otherwise modified prior to the date hereof, the “Forbearance Agreement”), by and among the Loan Parties, the Lenders party thereto, and the Agent;

WHEREAS, Parent has informed the Lenders and Agents that it intends to issue one or more secured convertible debentures in favor of certain “Holders” party thereto (each a “Holder” and collectively, the “Holders”), in the form of Exhibit A attached hereto (with such changes thereto as may be approved by the Agent in its sole discretion) (each individually, a “2026 Convertible Debenture” and, collectively, the “2026 Convertible Debentures”), which 2026 Convertible Debentures shall be issued pursuant to the terms of a Subscription Agreement entered into by each Holder in connection with such Debenture, in the form of Exhibit B attached hereto (with such changes thereto as may be approved by the Agent in its sole discretion) (collectively, the “Subscription Agreements” and, together with the 2026 Convertible Debentures and any other agreement, document or instrument governing, evidencing or securing the indebtedness evidenced by the Debentures, the “2026 Debenture Documents”);

WHEREAS, the indebtedness and other obligations of Parent under the 2026 Convertible Debentures will be (i) guaranteed by TerrAscend USA and (ii) secured by a second priority lien over all personal property assets of TerrAscend USA, in each case, pursuant to a Subordinated Guaranty and Security Agreement in the form of Exhibit C attached hereto (with such changes thereto as may be approved by the Agent in its sole discretion) (the “Subordinated Guaranty and Security Agreement”);

WHEREAS, Parent has also informed the Lenders and Agents that TSND NJ proposes to enter into an Option Agreement pursuant to which TSND shall acquire the right to purchase 35% of the outstanding Equity Interests of Aunt Mary’s Dispensary LLC, a portion of the consideration of which shall be payable by Parent’s issuance of a Convertible Promissory Note that shall be subordinated to the payment of the Obligations, as more particularly set forth in Annex B attached hereto; and

WHEREAS, the Loan Parties have requested and the Lenders are prepared to amend certain of the terms and provisions of the Existing Loan Agreement and the Forbearance Agreement, in each case, subject to the conditions and in reliance on the representations set forth herein.

NOW, THEREFORE, in consideration of the premises and agreements, provisions and covenants herein contained, and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1.Loan Agreement Amendment

. Subject to the conditions set forth herein and in reliance on the representations and warranties set forth herein, as of the Fifth Amendment Effective Date:

1.1.The Existing Loan Agreement (excluding the Schedules and Exhibits thereto) is hereby amended as set forth in Annex A attached hereto such that all of the newly inserted double underlined text (indicated textually in the same manner as the following example: **double-underlined text**) and any formatting changes attached hereto shall be deemed to be inserted and all stricken text (indicated textually in the same manner as the following example: **stricken-text**) shall be deemed to be deleted therefrom.

1.2.Schedule 1.1(e) to the Existing Loan Agreement is amended and restated in the form of Annex B hereto.

2.Forbearance Agreement Amendments

. Subject to the conditions set forth herein and in reliance on the representations and warranties set forth herein, as of the Fifth Amendment Effective Date, the Forbearance Agreement is hereby modified and amended to increase the “Collateral Monitoring Fee” set forth therein to [***], which such amendment shall be effective on the Fifth Amendment Effective Date and shall apply to all payments of the “Collateral Monitoring Fee” after the Fifth Amendment Effective Date (commencing with the payment of the June 30, 2026). For the avoidance of doubt, the forgoing amendment shall apply to that certain “June 30th Letter” attached to the Forbearance Agreement as Exhibit A.

3.Costs and Expenses

. To the extent required under (and subject to the terms of) Section 11.5 of the Amended Loan Agreement, the Loan Parties shall reimburse the Agent and the Lenders for all reasonable and documented legal fees and other reasonable out-of-pocket expenses incurred in connection with this Fifth Amendment and the transactions contemplated hereby.

4.Effective Date

. This Fifth Amendment shall become effective (the “Fifth Amendment Effective Date”) upon satisfaction of each of the conditions set forth below:

4.1.this Fifth Amendment shall have been executed by the Loan Parties, the Lenders party hereto, which constitute the Required Lenders under the Existing Loan Agreement, and the Agent, and counterparts hereof as so executed shall have been delivered to the Agent;

4.2.the representations and warranties of the Loan Parties contained herein or in the other Loan Documents, after giving effect to this Fifth Amendment, shall be true and correct in

all material respects (or in all respects if any such representation or warranty is already qualified by materiality, Material Adverse Effect or other similar language) on and as of the Fifth Amendment Effective Date, except to the extent that such representations and warranties expressly relate to an earlier date, in which event such representations and warranties shall be true and correct in all material respects (or in all respects if any such representation or warranty is qualified per its terms by materiality, Material Adverse Effect or other similar language) as of such earlier date;

4.3.no Default or Event of Default has occurred and is continuing, nor shall any Default or Event of Default exist immediately after giving effect to this Fifth Amendment; and

4.4.the payment from Loan Parties of (i) a fee for the account of each Lender that has delivered to Administrative Agent such Lender's executed signature page to this Fifth Amendment by 12:00 p.m. (New York time) on June 19, 2026, with such fee for each such Lender being in an amount equal to the product of (A) [***] multiplied by (B) the sum of such Lender's outstanding Term Loans, and (ii) all fees, costs and expenses required to be reimbursed pursuant to Section 3above, to the extent invoiced two (2) Business Days prior to the Fifth Amendment Effective Date.

5.Representations and Warranties. Each Loan Party represents and warrants to the Agent and the Lenders on the date hereof that:

5.1.the execution, delivery and performance of this Fifth Amendment is within its corporate or other organizational powers and has been duly authorized by all necessary corporate or other organizational action of it;

5.2.this Fifth Amendment has been duly executed and delivered by it and is a legal, valid and binding obligation of it, enforceable in accordance with its terms, subject to applicable bankruptcy, insolvency or similar laws affecting creditors' rights generally and to general principles of equity and principles of good faith and dealing; and

5.3.the representations and warranties of the Loan Parties contained herein or in the other Loan Documents, after giving effect to this Fifth Amendment, are true and correct in all material respects (or in all respects if any such representation or warranty is already qualified by materiality, Material Adverse Effect or similar language) on and as of the Fifth Amendment Effective Date, except to the extent that such representations and warranties expressly relate to an earlier date, in which event such representations and warranties are true and correct in all material respects (or in all respects if any such representation or warranty is already qualified by materiality, Material Adverse Effect or similar language) as of such earlier date.

6.Reaffirmation

. Each Borrower consents to the amendment of the Existing Loan Agreement effected hereby and confirms and agrees that, notwithstanding the effectiveness of this Fifth Amendment, each Loan Document to which such Borrower is a party is, and the obligations of such Borrower contained in the Amended Loan Agreement, this Fifth Amendment or in any other Loan Document to which it is a party are, and shall continue to be, in full force and effect and are hereby ratified and confirmed in all respects, in each case, as amended by this Fifth Amendment. For greater certainty and without limiting the foregoing, each Borrower hereby confirms the existing security interests granted in favor of the Agent for the benefit of, among others, the Lenders pursuant to the Loan Documents in the Collateral described therein, which security interests

shall continue in full force and effect after giving effect to this Fifth Amendment to secure the Obligations as and to the extent provided in the Loan Documents.

7. Amendment, Modification and Waiver

. This Fifth Amendment may not be amended, modified or waived except as permitted by Section 11.2 of the Amended Loan Agreement.

8. Entire Agreement

. This Fifth Amendment and the other Loan Documents constitute the entire agreement among the parties relating to the subject matter hereof and supersede any and all previous agreements and understandings, oral or written, relating to the subject matter hereof. On and after the Fifth Amendment Effective Date, each reference in the Loan Documents to “the Loan Agreement,” “thereunder,” “thereof” or words of like import referring to the Loan Agreement, shall mean a reference to the Amended Loan Agreement.

9. Miscellaneous. Section 11.11 (Submission to Jurisdiction; Waivers), Section 11.12 (Severability), Section 11.13 (Governing Law), Section 11.14 (Waiver of Defense of Illegality) and Section 11.15 (Execution in Counterparts; Electronic Signatures) of the Loan Agreement are incorporated herein by reference, *mutatis mutandis*.

10. Loan Document; No Novation

. On and after the Fifth Amendment Effective Date, this Fifth Amendment shall constitute a “Loan Document” for all purposes of the Amended Loan Agreement and the other Loan Documents (it being understood that for the avoidance of doubt this Fifth Amendment may be amended or waived solely by the parties hereto as set forth in Section 7 above). This Fifth Amendment shall not constitute a novation of the Existing Loan Agreement or any of the Loan Documents.

11. Lender Direction

. Each Lender party hereto, by their execution hereof, hereby authorizes and directs the Agent to execute and deliver this Fifth Amendment on the date hereof.

[Signature pages to follow]

IN WITNESS WHEREOF, each of the undersigned has caused this amendment to be duly executed by their respective authorized officers as of the day and year first above written.

GUARANTOR:

TERRASCEND CORP.

By: /s/

Name: [***]

Title: [***]

BORROWERS:

[***]

By: /s/

Name: [***]

Title: [***]

[***]

By: /s/

Name: [***]

Title: [***]

[***]

By: /s/

Name: [***]

Title: [***]

IN WITNESS WHEREOF, each of the undersigned has caused this amendment to be duly executed by their respective authorized officers as of the day and year first above written.

AGENT:

FG AGENCY LENDING LLC

By: /s/ _____
Name: [***]

Title: [***]

IN WITNESS WHEREOF, each of the undersigned has caused this amendment to be duly executed by their respective authorized officers as of the day and year first above written.

LENDERS:

[**]

By: /s/ _____
Name: [**]

Title: [**]

ADDITIONAL LENDER:

[**]

By: /s/ _____
Name: [**]

Title: [**]